



First Home Savings Account Application

YOUR INVESTMENT PROFESSIONAL

for all transactions

Dealer company's name	Dealer code	Rep. code
Investment professional's name	Phone # () -	

TYPE OF ACCOUNT

☐ New account
Fidelity account no. Dealer Cross Reference no.

ACCOUNT HOLDER INFORMATION

all information is mandatory

You must be a Canadian resident and 18 years of age or older to contribute to a FHSA.

☐ Mr. ☐ Mrs. ☐ Miss	First name	Initials	Last name
☐ Ms. ☐ Dr.	Street address	Apt/Suite	Date of birth (dd/mm/yyyy) ☐ English ☐ French
City	Province	Postal code	Cell phone () - Alternate phone () -
Social insurance number	Email		

E-DELIVERY

Fidelity uses electronic delivery to provide you with your Confirmations, Statements, Fund Financial Reports & MRFP, Annual Regulatory Notices, and other documents. It is your responsibility to register for My Accounts at fidelity.ca/investorlogin, in order to access and retrieve these documents. You will also receive electronic notice of documents at the email you have provided to us, and as they become available, and you understand and agree that you must provide us with a valid and up to date email in order to receive such notifications. **If you do not wish to receive documents via electronic delivery, or if you have any difficulty registering for My Accounts, please immediately contact us at 1 800 263-4077.**

You may also choose to receive tax slips/receipts by electronic delivery by checking the below box. If you do not check the box below, you will continue to receive tax slips/receipts by mail.

☐ I/we confirm that we choose to receive tax slips/receipt by electronic delivery and that by choosing this option, I will no longer receive tax documents by mail.

SUCCESSOR HOLDER AND/OR DESIGNATION OF BENEFICIARY(IES)

For all provinces and territories except Quebec: The validity of a successor holder/beneficiary designation is subject to provincial/territorial succession legislation. **For the province of Quebec:** Under the laws of Quebec, a designation of successor holder/beneficiary may be made in a will or other written document that meets the requirements of a testamentary disposition. The successor holder/beneficiary designation made on this application cannot be given effect and will be defaulted to the estate.

1. Designation of successor holder (for all provinces and territories, except Quebec)

I hereby designate my spouse or common-law partner ("Spouse"), named below, to become the Successor Holder (as defined in the Declaration, as that term is defined below) and acquire all of my rights as the holder of the Qualifying Arrangement in accordance with the terms of the declaration of trust (the "Declaration") and applicable law in the event of my death before termination of the Qualifying Arrangement, if he or she survives me. I reserve the right to change or revoke this designation as permitted by law, in accordance with the terms of the Declaration. If I have designated both successor holder and beneficiary (under Designation of Beneficiary(ies) section below), and both are alive at my death, then the successor holder designation takes precedence. The successor holder may, after my death, revoke or change the beneficiary.

First Name of Spouse/Common-Law Partner	Last Name of Spouse/Common-Law Partner	Relationship
Spouse/Common Law Partner's Social Insurance Number		



2. Designation of beneficiary(ies) (for all provinces and territories, except Quebec)

I declare that any property passing to a beneficiary from the Qualifying Arrangement, the value of such property, and any and all income or capital gain or other benefit arising from such property, shall remain the exclusive property of a beneficiary and shall be excluded from a beneficiary's net family property or community of property or the value of a beneficiary's assets for the purposes of division of property on a beneficiary's separation, divorce, annulment or death as contemplated by any statute dealing with matrimonial or family property in any jurisdiction to the extent allowed by law.

Caution: Your successor holder/beneficiary will remain unchanged on our records until you make a change by notifying us in writing. You should reconsider your successor holder/beneficiary designation if there are any changes in your personal circumstances, such as marriage or divorce.

☐ I understand that I am solely responsible for ensuring that the above designation is legally valid under applicable provincial legislation.

☐ Wire Order Purchase (provide wire order # below) ☐ Transfer from a non-Fidelity account (attach transfer form)

☐ Direct Purchase (attach cheque) ☐ Transfer from an existing Fidelity account _____

- Note:** For One-time PAC requests, use the Systematic Purchases (PAC) section of this application

Fund code	Fund name	Amount \$ %	Sales Charge (0%–5%)	Wire order number
TOTAL INVESTMENT AMOUNT				

* For FHSA accounts, all distributions are reinvested.

☐ I authorize Fidelity to exchange funds within my Fidelity account as follows:

FREQUENCY OPTIONS (choose one)

Last run date* _____

- ☐ Weekly ☐ Bi-Weekly ☐ Monthly ☐ Twice a Month ☐ Every 2 Months ☐ Quarterly ☐ Semi-annually ☐ Annually

Start Date (dd/mm/yyyy)	Second Run Date <i>For twice a month only</i> (dd/mm/yyyy)	From Fidelity Fund		Amount		To Fidelity Fund	
		Fund Code	Fund Name	\$	Units	Fund Code	Fund Name

SYSTEMATIC PURCHASES (PAC)

(cash purchase/in-kind transfer)

- If your PAC date does not fall on a business day, Fidelity will process the PAC on the next business day.
- Fund code takes priority over fund name.
- It may take up to 48 hours for funds to be withdrawn from your bank account from the date the PAC is scheduled to run.
- DSC series (including Low Load and Low Load 2 options) of Fidelity Funds cannot be purchased on and after June 1, 2022.

* The last run date is the last date funds will be withdrawn from your bank account.

** The Annual Increase will be applied to the 1st run date of each calendar year.

☐ I authorize Fidelity Investments to debit the bank account indicated on the attached void cheque for the amount(s) and in the frequencies indicated. If I have elected to increase the amount indicated by specifying a percentage in the column below entitled "Annual Increase (0.00 – 100%)", I authorize Fidelity Investments to increase said amount by the percentage specified unless I provide instructions to Fidelity Investments to cancel or amend the annual increase instructions in accordance with the notice requirements set out below. If I transfer my account to a different branch of the same institution, this authorization will still be valid. Failure to make the payment will not give rise to any liability for Fidelity Investments. I may change these instructions or cancel this plan at any time, provided Fidelity Investments receives at least 10 business days notice by phone or by mail. I have certain recourse rights if a debit does not comply with this agreement. For example, I have the right to

receive reimbursement for any debit that is not authorized or is not consistent with this pre-authorized debit agreement (PAD). (To obtain more information on recourse rights and/or a sample of a cancellation form, or more information on your right to cancel a PAD Agreement, contact your financial institution or visit www.payments.ca.) By Canadian Payment Association definition, if this is for your own personal investment, your debit will be considered a Personal PAD. If this is for business purposes, it will be considered a Business PAD. **By signing this form, I hereby waive any pre-notification requirements as specified by section 15(a) and (b) of the Canadian Payments Association Rule H1 with regards to pre-authorized debits.** I confirm that all persons whose signatures are required to authorize transactions in the bank account, as per the attached void cheque, have signed this agreement below.

Bank Account Holder Signature _____

Joint Bank Account Holder Signature _____

FREQUENCY OPTIONS (choose one)

Last run date* _____

☐ Weekly ☐ Every 2 Weeks ☐ Monthly ☐ Twice a Month ☐ Every 2 Months ☐ Quarterly ☐ Semi-annually ☐ Annually

One Time PAC (check if applicable)	Start Date (dd/mm/yyyy)	Second Run Date For twice a month only (dd/mm/yyyy)	Fund Code	Fund Name	Amount (\$)	Annual Increase (0.00 – 100.00)**	Sales Charge (0%-5%)
☐							
☐							
☐							
☐							
TOTAL DOLLAR AMOUNT					\$	0	

SYSTEMATIC WITHDRAWALS (SWP)

- If your SWP date does not fall on a business day, Fidelity will process the SWP on the preceding business day.
- Fund code takes priority over fund name.
- See Fidelity EFT Policy in Regards to SWPs on Tips page.

* The last run date is the last date funds will be deposited to your bank account.

** The Annual Increase will be applied to the 1st run date of each calendar year.

☐ I authorize Fidelity to make regular withdrawals from my Fidelity account as shown below.

FREQUENCY OPTIONS (choose one)

Last run date* _____

☐ Weekly ☐ Every 2 Weeks ☐ Monthly ☐ Twice a Month ☐ Every 2 Months ☐ Quarterly ☐ Semi-annually ☐ Annually

Start Date (dd/mm/yyyy)	Second Run Date For twice a month only (dd/mm/yyyy)	Fund Code	Fund Name	Amount (\$) ☐ Gross ☐ Net	Annual Increase (0.00 – 100.00)**	Attach a void cheque for the direct deposit of your payment to your bank account. Direct deposit may take up to 48 hours to post on your bank account.
TOTAL DOLLAR AMOUNT					\$	0

BANKING INFORMATION

for PAC and SWP payments

ATTACH YOUR BANKING INFORMATION TO THIS APPLICATION FORM.

Fidelity EFT Policy: To help protect our investors, Fidelity Investments requires one of the following:

- A copy of a personalized void cheque with client name and banking information pre-printed/embossed on the cheque. **Counter cheques will not be accepted.**
- A letter from a recognized Canadian Bank or Credit Union issued on an official bank form or letterhead, with client name and bank account details. Bank stamp and signature must be provided if indicated on the bank form or letterhead.

- Online Bank Form, with or without void cheque image, with client name and bank account details. Bank stamp and signature must be provided if indicated on the Online Bank Form.
- 10 business days are required before the start date to set up or change a PAC or SWP plan.

NOTE: Payments can only be made payable to the beneficial owner/client name(s) on the Fidelity account.

PRIVACY NOTICE AND YOUR CHOICES

By providing your personal information on this form, or by authorizing your Dealer, financial institution or other third party to provide your personal information, you consent to Fidelity using your personal information to: administer your account, provide you and/or your authorized Dealer with transaction confirmations, statements, tax receipts, or other documents, information or services as requested from time to time, process pre-authorized debit transactions; use your personal information on this form (including email) and combine such information with other demographic information about you, your investment profile, and your online and offline interactions with Fidelity, to keep you informed of products and services that may be of specific interest to you; and otherwise required or permitted by law.

Fidelity may disclose the Information to its employees, agents and third parties who are bound to maintain its confidentiality, including your Dealer, third party service providers, other financial institutions and any governmental authority, as necessary for the above purposes or as

required by law, including to comply with requests for information from regulatory bodies and for income tax reporting purposes.

If you provide personal information about another individual, you represent and warrant that you have obtained appropriate consent from that individual to disclose their personal information to Fidelity for the above purposes.

You may choose to unsubscribe from receiving marketing and promotional communications from us at any time by following the unsubscribe procedure included in the communications, or via our Privacy Centre, or by contacting us at FICCustService@fidelity.ca or 1 800 263-4077. You may also exercise other privacy rights under applicable laws, such as the right to access, correct or withdraw your consent to our use of your personal information. For detailed information about how we collect, use and disclose your personal information and your privacy rights, please access our [Privacy Statement](#) at fidelity.ca.

CERTIFICATION – QUALIFYING INDIVIDUAL

I hereby certify to the Parties, and I understand that the Parties are relying on such certification in opening and administering the Qualifying Arrangement, the following:

1. I am currently a resident of Canada;
2. I am at least 18 years of age; and
3. I did not, at any prior time in this calendar year or in the preceding four calendar years, inhabit as a principal place of residence a qualifying home (as that term is defined in the Income Tax Act (Canada) (the "ITA")) (or what would be a qualifying home if it were located in Canada) that was owned, whether jointly with another person or otherwise, by me or by a person who is my spouse or common-law partner

TO: COMPUTERSHARE TRUST COMPANY OF CANADA (the "Trustee")

I hereby apply for a FIDELITY INVESTMENTS FIRST HOME SAVINGS ACCOUNT (the "Qualifying Arrangement") in accordance with the terms and conditions of this Application and the Declaration of Trust attached hereto. By signing below, I have agreed that:

1. I have read, understood and agree to the terms of the Declaration of Trust.
2. I declare that the information given in this Application is true, correct and complete.
3. I request that the Trustee file an election with the Minister of National Revenue to register the Qualifying Arrangement as a FHSA under section 146.6 of the ITA.
4. I acknowledge that I am responsible for: (i) ensuring that at all applicable times I satisfy the requirements of a "qualifying individual" under section 146.6 of the ITA; and (ii) determining my contribution limits, my investment decisions and whether an investment is permitted or prohibited under the tax laws, and I am aware of the consequences of acquiring and holding investments which are prohibited and/or non-qualified.
5. The Trustee may delegate certain of its duties relating to the Qualifying Arrangement to Fidelity Investments Canada ULC as its Agent.
6. The Trustee and the Agent have no obligation to give me investment advice in connection with the purchase, retention or sale of any investment.
7. In the event of my death, the Successor Holder as designated above shall become the holder of the Qualifying Arrangement, if applicable. Otherwise, the proceeds of the Qualifying Arrangement will be paid to the beneficiary, if any, whom I have designated, if permitted by law, or, if I have not designated a beneficiary, such proceeds will be paid to my estate. (Note to Holders Domiciled in Quebec: Successor Holder Designations and Beneficiary Designations are not accepted in Quebec)
8. I will notify the Agent, in a form acceptable to the Agent and Computershare Trust Company of Canada, should I no longer be resident in Canada. I understand that I may be liable for certain tax consequences arising in connection with a non-compliant qualifying arrangement.
9. I acknowledge that I must and will notify the Agent should I wish to use my interest or right in the Qualifying Arrangement as security for a loan or other indebtedness.
10. In the course of providing services hereunder, the Trustee may collect or receive personal information about me and/or my representatives, as individuals, or about other individuals. The Trustee may use personal information for the following purposes:
 11. to administer the Qualifying Arrangement;
 12. to help manage its servicing relationship with such individuals;
 13. to meet legal and regulatory requirements; and
 14. if Social Insurance Numbers ("SINs") are collected, for tax reporting and to assist in verifying an individual's identity for security purposes.
15. The Trustee may transfer personal information to other companies in or outside of Canada that provide data processing and storage or other support in order to facilitate the services it provides. To obtain information about the Trustee's privacy practices and for more information on the way in which the Trustee collects, uses and discloses confidential and personal information, please refer to the Computershare Privacy Code online at www.computershare.com or request a copy of the Privacy Code by mail by writing to: Chief Privacy Officer, 320 Bay Street, 14th Floor, Toronto, ON M5H 4A6.
16. All capitalized terms in this Application shall have the meanings given to them in the Declaration forming part of the First Home Savings Account.
17. I acknowledge and agree to be bound by the terms and conditions of this Qualifying Arrangement as set out in the Application, the Declaration, and any relevant addendum to the Qualifying Arrangement.
18. It is my wish that all documents relating to the Qualifying Arrangement have been and shall be drawn up in the English language only. C'est mon désir que tout document de rapportant au régime soient rédigés en anglais seulement.
19. The Canada Revenue Agency will provide to the issuer taxpayer information necessary to administer and enforce the FHSA

HOLDER'S SIGNATURE

I acknowledge that I have received a copy of the current fund facts of the fund(s) selected and understand that these transactions are made under the terms and conditions therein. I understand that mutual funds are not insured under the Canada Deposit Insurance Corporation Act or la Régie de l'assurance-dépôts du Québec. I certify that the information provided by me on this application is complete and true in all respects. I request that this application and all documentation relating to my account or Plan be provided to me in English. Je vous prie de me faire parvenir la présente demande ainsi que toute la documentation afférente à mon compte ou à mon Régime en anglais.

FOR QUEBEC RESIDENTS ONLY / RÉSERVÉ AUX RÉSIDENTS DU QUÉBEC

By signing below, I acknowledge having received and examined the terms of this agreement in French and it is my express wish that this agreement be drawn up in English. I agree not to dispute the validity of this agreement on the basis that it is drawn up exclusively in English.

En apposant ma signature ci-dessous, je reconnais avoir reçu et examiné les conditions de cet accord en français, et c'est ma volonté expresse que cet accord soit rédigé en anglais. Je conviens de ne pas contester la validité de cet accord au motif qu'il est rédigé exclusivement en anglais.

Accepted on behalf of Computershare Trust Company of Canada by its Agent, Fidelity Investments Canada ULC

Date (dd/mm/yyyy)	Your Signature	Authorized Signature
/ /	X	X 

**FIDELITY INVESTMENTS
FIRST HOME SAVINGS ACCOUNT
DECLARATION OF TRUST**

We, Computershare Trust Company of Canada, a trust company existing under the laws of Canada, hereby declare that we will act as trustee for you, the holder named in the application to which this declaration is attached (the "Application"), for the Fidelity Investments First Home Savings Account (the "Qualifying Arrangement") upon the following terms:

SOME DEFINITIONS: In this declaration, in addition to terms defined elsewhere herein, "Act" means the *Income Tax Act* (Canada); "Agent" refers to the company named in paragraph 18; "common-law partner" has the meaning set forth in the Act; "Contributions" means contributions of cash or investments to the Qualifying Arrangement; "FHSA", being a first home savings account, has the meaning set forth in the Act; "Regulations" means the *Income Tax Regulations* (Canada); "spouse" means a spouse for the purposes of the Tax Laws; "Successor Holder" means the individual designated to acquire all of my rights as the holder of the Qualifying Arrangement in accordance with the terms of this declaration and the Application; "Survivor" means the individual, who immediately before your death, is your spouse or common-law partner as defined in the Act; "Tax Laws" means the Act, the Regulations, and any applicable tax legislation of your province of residence, as recorded in your Application; "We", "us", "our" and the "trustee" refer to Computershare Trust Company of Canada as issuer of the Qualifying Arrangement; "You" and "your", and the "holder" unless the context requires otherwise, refer to the person who has signed the Application and will be the owner of the Qualifying Arrangement; (under the Act, you are known as the 'holder' of the Qualifying Arrangement); and, after your death, your spouse or common-law partner if they become the Successor Holder of the Qualifying Arrangement as described in paragraph 15 hereof.

1. **TRUSTEE:** We shall administer the Qualifying Arrangement and hold, administer and acquire the Contributions and any investments, income or gains therefrom (the "Arrangement Assets").

Notwithstanding any other provision of this Declaration of Trust, any corporation resulting from our merger or amalgamation with one or more other corporations or any corporation that succeeds to, or acquires, substantially all of our plan administration business shall thereupon become us for the purposes of the Qualifying Arrangement without further act or formality, provided that the Qualifying Arrangement continues to be acceptable for registration in accordance with paragraph 2.

2. **REGISTRATION:** We will file an election with the Minister of National Revenue to register the Qualifying Arrangement as a FHSA under Section 146.6 of the Act in the form and manner prescribed in the Regulations under the Act, under your Social Insurance Number. The purpose of the Qualifying Arrangement is to provide for Contributions to be made to us in consideration of, or to be used, invested or otherwise applied for the purpose of, making distributions under the arrangement to you. The Qualifying Arrangement shall be administered in accordance with the applicable requirements of the Act and any similar applicable legislation of a Province of Canada relating to FHSAs (the "Applicable Legislation"). The Qualifying Arrangement will be maintained for your exclusive benefit (determined without regard to any right of a person to receive a payment out of or under the Qualifying Arrangement only on or after your death).
3. **EFFECTIVE DATE:** The Qualifying Arrangement shall be established upon our acceptance of the Application and registration of the Qualifying Arrangement in accordance with paragraph 2.
4. **DEALER:** In this Declaration, a "Dealer" means the person or entity acting (or representing that it acts) as or on behalf of your investment advisor, broker or dealer in connection with the Qualifying Arrangement. You acknowledge that a Dealer is your agent and not our agent. We are entitled to accept and act on any notice, authorization or other communication that we believe in good faith to be given by you or Dealer on your behalf. Any reference in this Declaration to your instructions or requests includes instructions or requests from your Dealer on your behalf. We are under no obligation to verify that a Dealer is properly authorized to act as your agent or is otherwise authorized to act on your behalf.
5. **ELIGIBILITY:** You have confirmed on the Application that you are a "qualifying individual", as defined in Section 146.6(1) of the Act. The statements relating to your date of birth, residency and principal place of residence on the Application shall constitute a certificate by you to such

effect and an undertaking to furnish such further evidence as may be required for the provision of a FHSA.

Notwithstanding its execution by us, the Application is subject to certain legal restrictions and we reserve the right not to accept an Application where, in our sole discretion, we believe that the Application is not or may not be consistent with these restrictions.

6. **CONTRIBUTIONS:** We will only accept Contributions made by you, or upon your death, pursuant to paragraph 15 herein, your spouse or common law partner if designated as Successor Holder. You will be solely responsible for determining the maximum limits for Contributions to the trust and any other FHSA in any taxation year as permitted by the Tax Laws. You will also be solely responsible for ensuring that any transfers to the trust are permitted by the Tax Laws. We will hold the Arrangement Assets in trust, to be held, invested and used according to the terms of this declaration and the Tax Laws. At our sole discretion, we may accept or reject all or part of a contribution from any source permitted by the Act.

7. **INVESTMENTS:** We will hold, invest and sell the Arrangement Assets according to your instructions and in accordance with the Tax Laws (including, but not limited to, Section 146.6 of the Act). We may require any instructions to be in writing. The trust is prohibited from borrowing money or other property for the purposes of the Qualifying Arrangement.

We may place any uninvested cash in a demand deposit account with a chartered bank in Canada. We may pay interest on any cash balances at such rate and credited at such time as we, in our sole discretion, determine.

Investments will not be limited to those authorized by law for trustees. In making your investment selection, you may select securities of mutual funds managed by the Agent or other investments acceptable to the Agent in its sole discretion. You are solely responsible for assessing the appropriateness of any investment, selecting investments for the Qualifying Arrangement, obtaining appropriate advice, or authorizing a Dealer to do any of these things for you. Cash distributions received by us in respect of investments held within the Arrangement will be re-invested in additional investments of the same type. In the absence of satisfactory investment instructions, we may invest cash in units of a money market fund managed by the Agent. We will hold assets of the Qualifying Arrangement in trust, and will custody such assets through the Agent or a custodian appointed by the Agent. The Arrangement will bear any taxes, penalties or related interest imposed under the Tax Laws, subject to paragraph 21 (other than those taxes, penalties and assessments imposed on us under the Act). We shall withhold from any amounts payable under the Qualifying Arrangement any amounts so required to be withheld, any taxes and other assessments payable by the Qualifying Arrangement under the Act and any other applicable legislation. If the Arrangement Assets are insufficient to pay any taxes, penalties or related interest incurred, or if taxes, penalties or related interest are imposed after the Arrangement has ceased, you must pay or reimburse us directly for any such taxes, penalties or related interest. You may, by way of a duly executed power of attorney in a form acceptable to us, appoint an agent to give investment instructions. You release us from any claim or liability when acting upon the instructions of such agent.

Notwithstanding anything in this declaration, we may decline to accept any particular Contribution or to make any particular investment, in our sole discretion or for any reason, including if it does not comply with our administrative requirements or policies in place from time to time. We may also need you to provide special supporting documentation as a condition to our undertaking certain transactions in the Qualifying Arrangement.

We will not be responsible for any loss resulting from the sale or other disposition of any investment forming part of the Arrangement Assets. No person other than you or we has rights under this Qualifying Arrangement relating to the investing of Arrangement Assets or the amount and timing of distributions.

You will be responsible for ensuring that all investments of the Qualifying Arrangement are "qualified investments" within the meaning of the Act. You will also be responsible for ensuring that none of the investments of the Qualifying Arrangement are "prohibited investments" within the meaning of the Act.

**FIDELITY INVESTMENTS
FIRST HOME SAVINGS ACCOUNT
DECLARATION OF TRUST**

8. **YOUR ACCOUNT AND STATEMENTS:** We will maintain an account in your name showing all Contributions made to the Qualifying Arrangement, all investment transactions and all withdrawals from the Qualifying Arrangement.
9. **MANAGEMENT AND OWNERSHIP:** While there is a holder of the Qualifying Arrangement, no person other than us (including our Agent) and you shall have any rights under the arrangement relating to the amount and timing of distributions from the Qualifying Arrangement and to the investing of the Arrangement Assets. We may hold any investment in our own name, in the name of our nominee or agent, in bearer form or in such other name or form, or with any such custodian, clearing corporation or depository, as we may determine. Subject to paragraph 21, we may generally exercise the power of an owner with respect to the Arrangement Assets, including the right to vote or give proxies to vote in respect thereof, to sell assets to pay any assessments, taxes or charges in connection with the Qualifying Arrangement, or to limit or restrict transactions or withdrawals as we, in our sole discretion, deem necessary. In exercising our rights and carrying out our responsibilities hereunder, we may employ agents and advisors, including legal counsel, and may act or not act on the advice or information of any such agent or advisor.
10. **REFUND OF EXCESS OR NON-RESIDENT CONTRIBUTIONS:** We will, upon receiving a written request from you, refund an amount to you in order to reduce the amount of tax that would otherwise be payable under section 207.021 of the Act, or under any other Tax Laws. We will not be responsible for determining the amount of any such refund.
11. **QUALIFYING WITHDRAWALS:** You may, in writing and in a form prescribed in the Regulations under the Act request a "qualifying withdrawal", as defined in the Act, from the provided that you satisfy all of the applicable requirements under the Act and provide us with all information and confirmations that we require in respect of such a request. In order to make such payment, we may sell all or part of any of the investments, to the extent we deem appropriate. We will withhold any taxes and charges required at the time of withdrawal of funds and pay you the balance, after deducting any applicable fees and expenses. We will have no liability to you in respect of any sold Arrangement Assets or for any losses that may result from such sales.
12. **TRANSFERS (ON RELATIONSHIP BREAKDOWN OR OTHERWISE):** Subject to any reasonable requirements we impose, you may direct us in writing to transfer Arrangement Assets (net of any costs of realizations), less any fees or charges payable hereunder and any taxes, interest or penalties that are or may become payable or have to be withheld under the Tax Laws, to a registered retirement savings plan, a registered retirement income fund or another FHSA under which:
- (i) you are the holder; or
 - (ii) the holder is your spouse, former spouse, common-law partner or former common-law partner, from whom you are living separate and apart, and the transfer is made pursuant to a decree, order or judgment of a competent tribunal, or a written separation agreement, relating to a division of property in settlement of rights arising out of your marriage or common-law partnership, or after the breakdown of such marriage or partnership.
- Such transfers will take effect in accordance with the Tax Laws and any other applicable law and within a reasonable time after any required forms have been completed. If only a portion of the Arrangement Assets is transferred under this paragraph, you may specify in writing which Arrangement Assets you wish us to transfer or sell; otherwise, we will transfer or sell the Arrangement Assets that we deem appropriate. No transfer will be made until all fees, charges and taxes have been paid. We will have no liability to you in respect of any sold Arrangement Assets or for any losses that may result from such sales.
13. **BORROWING BY THE TRUST OR USING TRUST INTEREST AS SECURITY FOR LOAN:** The trust may not borrow money or property for purposes of this trust. Nothing in paragraphs 2, 9 or 12 hereof apply to the extent they are inconsistent with your ability to use your interest or, for civil law, right in the trust as security for a loan or other indebtedness if the conditions in section 146.6 of the Act are met.
14. **TERMINATION:** The Qualifying Arrangement shall cease to be a FHSA after the end of your "maximum participation period", which is defined in the Act to mean the period that:
- (i) Begins when an individual first enters into a qualifying arrangement (as that term is defined in the Act); and
 - (ii) Ends at the end of the year following the year in which the earlier of the following events occur:
 - (a) The 14th anniversary of the date the individual first enters into the qualifying arrangement;
 - (b) The individual attains 70 years of age; and
 - (c) The individual first makes a qualifying withdrawal (as that term is defined in the Act) from the Qualifying Arrangement.
- (d) **DESIGNATION OF SUCCESSOR HOLDER / BENEFICIARY:** Where effective under applicable provincial law, you may designate one or more beneficiaries of the Qualifying Arrangement after your death, to receive the proceeds of the Qualifying Arrangement in the event of your death (the "Beneficiary"), provided that you did not elect your Survivor as the Successor Holder of the Qualifying Arrangement. You may make, change or revoke a Beneficiary designation by completing, dating and signing the form we provide or any other form appropriate for this purpose and ensuring we receive it before we pay out the Qualifying Arrangement under paragraph 16. Any designation, amended designation or revoked designation will be valid on the day following the day we receive it. If more than one form has been received by us, we will act on the one with the latest signature date. If you are domiciled in Quebec, a Beneficiary designation or any revocation may only be made by your will. It is your sole responsibility to ensure that a Beneficiary designation or revocation is valid pursuant to the laws of Quebec.
15. **DEATH:** In the event of your death and upon receipt of satisfactory evidence of your death, and such other releases and documents we may require, if the Survivor was appointed as the Successor Holder on the Application and had not predeceased you, the Survivor will become the holder of the Qualifying Arrangement. If you had not designated that your spouse or common-law partner become Successor Holder in accordance with paragraph 15 above (or you had so designated but your spouse or common-law partner predeceased you), we will, upon receipt of satisfactory evidence of your death and all other documents we may, in our sole discretion, require and subject to paragraph 15 above, transfer the Arrangement Assets, or sell them and pay out the proceeds, to the designated Beneficiary(ies) under the Qualifying Arrangement in accordance with paragraph 15 above. If you had not designated a Beneficiary or if such Beneficiary(ies) die before you, we will make such transfer or payment to your legal personal representative.
- If the Survivor fails to direct us within 30 days of your death, we may, at our discretion, realize the Arrangement Assets and other property of the Qualifying Arrangement and pay the proceeds, less any outstanding compensation owing to us and any amount required to be withheld by us, to the Survivor. Deductions will be made for all fees, costs, charges and taxes to be paid or withheld. We will be fully discharged once we make such transfers or payments, even though any Beneficiary designation made by you may be invalid as a testamentary instrument. We will not be liable for any loss caused by any delay in making any such transfer or payment. If you die while domiciled in Quebec, subject to paragraph 15, the proceeds shall be paid to your estate.
16. **PROOF OF AGE:** Your statement of your date of birth in your Application will be deemed to be a certification of your age and your undertaking to provide any further evidence or proof of age that may be required for the purpose of determining eligibility to enter into a FHSA. A Qualifying Arrangement is not considered a qualifying arrangement (as defined in section 146.6(1) of the Act) unless the holder is at least 18 years of age when the arrangement is entered into.
17. **DELEGATION:** You authorize us to delegate to Fidelity Investments Canada ULC (the "Agent") the performance of certain of our duties, including the following:
- (i) filing an election with the Minister of National Revenue to register the Qualifying Arrangement as a FHSA under section 146.6 of the Act;

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- (ii) receiving Contributions from you;
- (iii) investing the Arrangement Assets in accordance with this declaration;
- (iv) holding the Arrangement Assets in safekeeping, in its name or in the name of its nominee or custodian;
- (v) maintaining your account and providing you with statements and notices;
- (vi) receiving and implementing your notices and instructions;
- (vii) collecting fees and expenses from you or the Qualifying Arrangement;
- (viii) filing any elections permitted under the Tax Laws as directed by you or your personal representatives;
- (ix) preparing and filing tax returns or forms relating to the Qualifying Arrangement;
- (x) withdrawing or transferring Arrangement Assets in accordance with your instructions or for the purpose of making payments to you, any government authority or any other person entitled to same under the Qualifying Arrangement, the Tax Laws or other applicable legislation;

and any other duties relating to the Qualifying Arrangement as we may, in our sole discretion, determine appropriate from time to time. We will, however, bear ultimate responsibility for the administration of the Qualifying Arrangement in accordance with this declaration and the Tax Laws. The Agent may further sub-delegate any of these duties to another agent.

You acknowledge that we may pay the Agent all or any portion of our fees hereunder and reimburse it for its out-of-pocket expenses in performing its delegated duties. You also acknowledge that the Agent will earn normal brokerage commissions on investment transactions processed by it. You acknowledge and agree that all protections, limitations of liability and indemnifications given to us under this declaration, including without limitation those under paragraph 18 and 19 are also given to, and are for the benefit of, the Agent.

18. **FEES AND EXPENSES:** We are entitled to receive and may charge against the Qualifying Arrangement reasonable fees and other charges that we establish from time to time in conjunction with the Agent. Subject to paragraph 21, we are also entitled to reimbursement for all taxes, penalties and interest and for all other costs and out-of-pocket expenses incurred by us or the Agent in connection with the Qualifying Arrangement. All amounts so payable will be charged against and deducted from the Arrangement Assets, unless you advise differently and make the required provisions. If the cash in the Arrangement is not sufficient to pay these amounts, we may, in our sole discretion, sell any of the Arrangement Assets in order to pay same and we will not be responsible for any loss occasioned by any such sale. We reserve the right to change, from time to time, the amount of such fees upon 30 days' notice to you.

19. **TRUSTEE'S LIABILITY:** The Trustee acknowledges that it is ultimately responsible for the administration of the Qualifying Arrangement. We are not responsible for determining whether any investment made on your instructions is or remains a "prohibited investment" for your Qualifying Arrangement, as that term is defined under the Act. We are entitled to act upon any instrument, certificate, notice or other writing believed by us to be genuine and properly signed or presented. When the Qualifying Arrangement is terminated and all of the Arrangement Assets are paid out, we will be released and discharged from any further responsibility or obligation in connection with the Qualifying Arrangement.

Subject to the express provisions of the Act and to paragraph 21 hereof, we will not be liable to you or the Qualifying Arrangement for or in respect of any tax, penalty, interest, loss or damages suffered or incurred by the Arrangement, you or any other person in connection with the Qualifying Arrangement, as a result of the acquisition, holding or transfer of any investment, or as a result of payments out of the Qualifying Arrangement, made in accordance with the terms of this declaration or as a result of us acting or declining to act in accordance with instructions given to us, unless caused by our gross negligence, bad faith or willful misconduct and we may reimburse ourselves for, or pay, any tax, penalty, interest or charges imposed upon us under the Tax Laws or by any other government

authority out of the Arrangement Assets. Without limiting the generality of the foregoing, you will have no claim whatsoever against us, our officers, employees or agents, in relation to any losses, liabilities, diminution, damages, charges, costs, taxes assessments, levies, interest, demands, fines, claims, penalties, fees (including reasonable counsel fees) or expenses incurred directly or indirectly with respect to the administration or trusteeship of the Qualifying Arrangement or the Arrangement Assets ("Liabilities"), with respect to dealing with the assets of the Qualifying Arrangement in accordance with the investment instructions we believe in good faith to have been given by you or your properly authorized agent, with respect to delivering or releasing assets of the Arrangement in accordance with this Declaration of Trust and with respect to performing our obligations hereunder, except Liabilities directly caused by our gross negligence, bad faith or willful misconduct. You specifically acknowledge that we will not be responsible for Liabilities caused by any action or inaction of the Agent in its personal capacity.

You, your heirs and legal personal representatives shall at all times indemnify and save harmless us, our associates and affiliates and each of our respective directors, officers, custodians, agents (including the Agent) and employees from and against all Liabilities of any nature whatsoever (including all expenses reasonably incurred in the defense thereof) which may at any time be incurred by any of us, or be brought against us by any person, regulatory authority or government authority, and which may in any way whatsoever arise out of or be connected in any way with the Qualifying Arrangement. If we are entitled to and make any claim under this indemnity, the Agent may pay the claim from the Arrangement Assets. If the Arrangement Assets are insufficient to cover the claim, or if the claim is made after the Qualifying Arrangement has ceased to exist, you agree to personally pay the amount of the claim.

Notwithstanding any other provision of this Declaration of Trust, we will not be liable for any loss or penalty suffered as a result of any act done by us in reasonable reliance on your authority or the authority of your properly authorized agent or legal representative. The provisions of this paragraph 20 shall survive the termination of the Qualifying Arrangement.

20. **LIABILITY OF TRUSTEE FOR TAXES, INTEREST AND PENALTIES:** We are not responsible for taxes, interest and penalties imposed on you or the Qualifying Arrangement, except for taxes, interest and penalties, if any, imposed on us by the Act that the Act states may not be reimbursed by the Qualifying Arrangement. The provisions of this paragraph 21 shall survive the termination of the Qualifying Arrangement.

21. **REPLACEMENT OF TRUSTEE:** We may at any time resign as trustee under the Qualifying Arrangement by giving you and the Agent 60 days written notice, or such shorter period of notice as the Agent may accept. The Agent may remove us as trustee by giving you and us 60 days written notice, or such shorter notice as we may accept. Upon giving or receiving any such notice of our removal or resignation, the Agent will within the notice period appoint a successor trustee authorized under the Tax Laws and any other applicable law (the "Successor Trustee"). The Agent will provide us with the name and address of the Successor Trustee. We shall transfer to the Successor Trustee all of the assets and other property of the fund and all records related to our duties as trustee. We shall do all acts and execute all deeds necessary for the proper transfer of the Qualifying Arrangement to the Successor Trustee.

If a Successor Trustee is not found within such notice period, we and/or the Agent may apply to a court of competent jurisdiction for the appointment of a Successor Trustee. Any costs incurred by us in securing the appointment of a Successor Trustee will constitute a charge against the assets of the Qualifying Arrangement and will be reimbursed from the Arrangement Assets unless borne personally by the Agent. Our resignation or removal will not be effective until a Successor Trustee is appointed. Any trust company resulting from a merger, amalgamation or continuation to which we are party, or succeeding to substantially all of our Canada Revenue Agency registered plan trusteeship business (whether by sale of such business or otherwise), will, if authorized, become the Successor Trustee of the Qualifying Arrangement without further act or formality.

If no such Successor Trustee is appointed by the Agent, you shall be entitled to request us to realize the Arrangement Assets and other property

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of the fund and to pay you the proceeds or to transfer the proceeds to another FHSA under which you are the holder or to a registered retirement savings plan or registered retirement income fund under which you are the annuitant. If no such request is made by you within 60 days after we, or the Agent, has given notice of such resignation or removal, we may be entitled to and may realize the Arrangement Assets and other property of the fund and pay the proceeds to you.

22. **AMENDMENTS TO THIS DECLARATION OF TRUST:** We may from time to time amend this declaration with the approval, if required, of the applicable taxation authorities as long as the amendment will not disqualify the Qualifying Arrangement as a FHSA under the Tax Laws. We will give you 30 days written notice of any amendment unless it is made for the purpose of satisfying a requirement imposed by the Tax Laws or unless in our sole opinion it will not adversely affect your rights.
23. **NOTICE:** You may give us instructions by personal delivery, fax or postage prepaid mail (or by such other means as we or the Agent may accept), properly sent to the Agent or to any other address that we designate. Notice shall have been deemed to be given on the actual date it is received by us. We may give you any notice, statement, receipt or other communication by postage prepaid mail, fax, electronic mail or other form of electronic transmission addressed or sent to you at the address recorded in your Application or to any subsequent address you or your Dealer provide us. Our notices to you will be deemed to have been given on the second business day after mailing.
24. **REFERENCE TO STATUTES:** All references herein to any statute, regulation or any provision thereof will mean such statute, regulation or provision as the same may be re-enacted or replaced from time to time.
25. **BINDING:** The terms and conditions of this declaration will be binding upon your heirs and legal personal representatives and upon our successors and assigns. Notwithstanding that, if the Qualifying Arrangement or the Arrangement Assets are transferred to a Successor Trustee, then the terms of such Successor Trustee's declaration of trust will govern thereafter.
26. **GOVERNING LAW:** This declaration will be construed, administered and enforced in accordance with the laws of the Province of Ontario and the laws of Canada applicable therein, except that, where the circumstances require, the terms "spouse" and "common-law partner" will be recognized in accordance with the Act.
27. **ELECTRONIC SIGNATURES:** You hereby authorize and direct the Agent and us to rely on your electronic signature on the Application, this Declaration of Trust and all ancillary documents and all such electronic signatures, however provided to the Agent and us, will be deemed to be reliable for the purpose of identifying you and will be deemed to be reliable for the purpose of the document signed.

28. **ENTIRE AGREEMENT:** The Application and this Declaration of Trust shall constitute the entire agreement between the parties with respect to the Qualifying Arrangement.

29. **LANGUAGE:** You have requested that your Application, this Declaration of Trust and all ancillary documents be provided to you in English. [*Le titulaire a exigé que la demande, la présente déclaration et tous les documents accessoires lui soient fournis en anglais.*]

30. **INFORMATION:** The statements you provide on the Application, including without limiting the generality of the foregoing, the birth date(s) and social insurance number(s), shall constitute a certification by you upon which we may act and rely and an undertaking to furnish such further evidence of proof of age and other factual information as may be required for the provision of the applicable legislation.

31. **PRIVACY:** We will collect, use and disclose personal information to establish and service the Qualifying Arrangement, as required or permitted by law and as disclosed in the Trustee's Privacy Code. We may, from time to time, disclose or transfer personal information given to us by you to the Agent. By applying for the Qualifying Arrangement, you are consenting to these collections, uses and disclosures.

32. **ACCESS TO FILE (APPLICABLE IN QUEBEC ONLY):** You understand that the information contained in your Application will be maintained in a file at the Agent's place of business. The object of this file is to enable us and the Agent, and our respective agents or representatives, to access your Application, answer any questions you may have regarding the Application and your Qualifying Arrangement, and manage your Qualifying Arrangement and your instructions on an ongoing basis. Subject to applicable law, personal information contained in this file may be used by us or by the Agent to make any decision relevant to the object of the file and no one may have access to the file except us, the Agent, our respective employees, agents and representatives, any other person required for the execution of our or the Agent's duties and obligations, you and any other person that you expressly authorize in writing. You are entitled to consult your file and to have anything in it corrected. In order to exercise these rights, you must notify us in writing.

33. **SPECIMEN ACCOUNT:** This declaration conforms with Specimen Plan FHSA 35740018.

Effective April 12, 2023

COMPUTERSHARE TRUST COMPANY OF CANADA

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